

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #03	CCRB Case #: 201910964	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 12/21/2019 3:45 AM, Monday, 12/23/2019 5:00 PM, Thursday, 12/26/2019 10:00 AM, NA, __/__/____	Location of Incident: § 87(2)(b) inside and outside, 120th Precinct stationhouse, Unknown location	18 Mo. SOL 2/5/2022	Precinct: 120
Date/Time CV Reported Tue, 12/24/2019 12:54 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 12/24/2019 12:54 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An Officer			
3. DT3 Matthew Commender	263	944451	120 DET
4. DTS Anthony Selvaggi	06194	923156	ESS 02
5. SGT Eddie Wong	04721	939705	123 PCT
6. PO Elvisa Kolenovic	28075	955021	120 PCT
7. SGT John Buthorn		927781	122 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Salvator Improta	05112	945421	120 DET
2. DT3 Darren Mcnamara	05736	922762	DB CEIS
3. DTS Joseph Breder	04464	941455	ESS 05
4. DT2 Michael Mendez	06138	904561	120 DET
5. SGT Joseph Dalbero	00983	944479	120 DET
6. POM Raymond Russo	17553	959173	120 PCT
7. POF Alisa Selbes	14658	965519	120 PCT
8. POM Hasan Javaid	10388	965218	120 PCT
9. POM Kevin Robinson	19677	963235	120 PCT
10. POM Salvatore Persico	06388	957028	122 PCT
11. POM John Salerno	14058	949606	122 PCT
12. POM Scott Samarisi	09187	942495	122 PCT
13. SGT Dominick Tursi	00737	952307	070 PCT
14. POF Lisa Williams-peter	21850	944862	123 PCT
15. POM Gaetano Depaolo	06575	944499	123 PCT
16. POM Jason Li	18095	961887	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
17. POM Steven Westgate	19086	962871	HARBOR
18. POM Christophe Payne	24311	945389	123 PCT
19. POF Claudia Torreshernandez	18788	959311	MED DIV
20. POM Asama Chaudhry	11450	965979	121 PCT
21. POM Ismael Diaz	10620	964486	121 PCT
22. POM Matthew Westgate	10877	964834	121 PCT
23. POF Vanessa Sherlock	15588	944655	120 PCT
24. DT3 Arthur Truscelli	00691	931348	120 DET
25. DTS Min Kim	04224	937149	ESS 05
26. POM Lukasz Kusibab	16874	950710	C S O
27. DT1 Ralph Tropiano	15442	951353	ESS 05
28. DT2 Robert Campbell	00353	922061	DBSI OP
29. DTS Thomas Citera	02941	945590	ESS 05
30. DT3 Michael Burke	00382	929800	SI HOMICIDE
31. DT1 Genee Parker	04131	928933	DA SQD SI

Officer(s)	Allegation	Investigator Recommendation
A . An Officer	Force: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer used physical force against § 87(2)(b)	A . Officer(s) Unidentified
B . SGT Eddie Wong	Abuse: On December 21, 2019, Sergeant Eddie Wong entered § 87(2)(b) in Staten Island.	B . Exonerated
C . Officers	Discourtesy: On December 21, 2019, at § 87(2)(b) in Staten Island, officers spoke discourteously to § 87(2)(b) and an individual.	C . Officer(s) Unidentified
D . An Officer	Discourtesy: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . An Officer	Discourtesy: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)	E . Officer(s) Unidentified
F . An Officer	Force: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer struck § 87(2)(b) with a police shield.	F . Officer(s) Unidentified
G . DTS Anthony Selvaggi	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Anthony Selvaggi drew his gun.	G . Exonerated
H . An Officer	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer drew their gun.	H . Exonerated
I . SGT John Buthorn	Abuse: On December 21, 2019, Sergeant John Buthorn entered § 87(2)(b) in Staten Island.	I . Exonerated
J . DT3 Matthew Commender	Abuse: On December 21, 2019, Detective Matthew Commender entered § 87(2)(b) in Staten Island.	J . Exonerated
K . DT3 Matthew Commender	Abuse: On December 21, 2019, Detective Matthew Commender searched § 87(2)(b) in Staten Island.	K . Exonerated
L . DT3 Matthew Commender	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender searched § 87(2)(b)'s vehicle.	L . Exonerated
M . DT3 Matthew Commender	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender searched § 87(2)(b)'s vehicle.	M . Exonerated

Officer(s)	Allegation	Investigator Recommendation
N . DT3 Matthew Commender	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b)'s property.	N . Exonerated
O . DT3 Matthew Commender	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b)'s property.	O . Exonerated
P . DT3 Matthew Commender	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b)'s property.	P . Exonerated
Q . DT3 Matthew Commender	Abuse: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b)'s property.	Q . Exonerated
R . Officers	Abuse: On an unknown date, at an unknown location, officers damaged § 87(2)(b)'s property.	R . Officer(s) Unidentified
S . Officers	Abuse: On an unknown date between December 21 and December 23, 2021, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.	S . Officer(s) Unidentified
T . Officers	Abuse: On an unknown date between December 21 and December 23, 2021, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.	T . Officer(s) Unidentified
U . Officers	Abuse: On an unknown date between December 21 and December 23, 2021, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.	U . Officer(s) Unidentified
V . Officers	Abuse: On an unknown date between December 21 and December 23, 2021, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.	V . Officer(s) Unidentified
W . An Officer	Discourtesy: On an unknown date between December 21 and December 23, 2021, at § 87(2)(b) in Staten Island, an officer acted discourteously toward § 87(2)(b).	W . Officer(s) Unidentified
X . PO Elvisa Kolenovic	Abuse: On December 23, 2019, outside of § 87(2)(b) Police Officer Elvisa Kolenovic took a photograph of § 87(2)(b).	X . Exonerated
Y . An Officer	Abuse: On December 26, 2019, at the 120th Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding an officer.	Y . Officer(s) Unidentified

Case Summary

On December 24, 2019, § 87(2)(b) filed this complaint on behalf of herself, her children, § 87(2)(b) and § 87(2)(b)-old § 87(2)(b) § 87(2)(b)'s friend, § 87(2)(b)'s unidentified § 87(2)(b)-old son and § 87(2)(b) § 87(2)(b)'s friend, § 87(2)(b). This case was originally assigned to Investigator Magdalena Azmitia and was reassigned to the undersigned investigator on June 24, 2021.

On December 21, 2019, at approximately 1:30 a.m., at least 18 officers from the 120th, 121st and 123rd Precincts, including Sergeant Eddie Wong of the 123rd Precinct, responded to § 87(2)(b) in Staten Island for a shot spotter. § 87(2)(f) § 87(2)(b) told the officers that she saw § 87(2)(b) discharge his firearm § 87(2)(b), § 87(2)(f) § 87(2)(b). Sgt. Wong then called the the Emergency Services Unit (ESU). Detective Anthony Selvaggi and Detective Darren Mcnamara of the ESU responded to the location to assist in searching for evidence of the shot spotter. Soon after, officers recovered bullets in front of § 87(2)(b).

Additional officers, including Detective Robert Campbell, Detective Sean Edwards and Detective Salvator Improta of the 120th Precinct Detective Squad and Sergeant John Buthorn of the 121st Precinct Detective Squad arrived at the location to investigate the shot spotter. Det. Selvaggi and Det. Mcnamara returned to the location along with additional unidentified ESU officers. ESU officers approached § 87(2)(b)'s house and § 87(2)(b) opened the door for them. An officer allegedly hooked their arm around § 87(2)(b)'s neck and swung her down the stairs (**Allegation A: Force, officer unidentified**). ESU officers, including Det. Selvaggi, then entered the location and allegedly said, "Get the fuck down," and told § 87(2)(b) to "shut the fuck up" (**Allegations B: Abuse of Authority, exonerated; Allegations C and D: Discourtesy, officers unidentified**). An officer also allegedly told § 87(2)(b) to "stop fucking talking" (**Allegation E: Discourtesy, officer unidentified**). An officer woke § 87(2)(b) up by hitting her in the calf of her leg with their shield (**Allegation F: Force, officer unidentified**). While placing residents in handcuffs, Det. Selvaggi and another officer had their guns drawn (**Allegations G and H: Abuse of Authority, exonerated**). Sgt. Buthorn then entered the house with Det. Campbell and Det. Edwards and removed the occupants of the house (**Allegation I: Abuse of Authority, exonerated**). § 87(2)(b)

§ 87(2)(b) were arrested, and § 87(2)(b) and § 87(2)(b) § 87(2)(b)-old child were removed to the 120th Precinct stationhouse. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Det. Matthew Commender of the 120th Detective Squad was assigned this case and obtained court-issued search warrants on § 87(2)(b) for § 87(2)(b) and § 87(2)(b) § 87(2)(b)'s and § 87(2)(b)'s vehicles. Det. Commender, Sergeant Joseph Dalbero and Detective Michael Mendez of the 120th Precinct Detective Squad entered and searched § 87(2)(b) and § 87(2)(b)'s and § 87(2)(b)'s vehicles (**Allegations J, K, L and M: Abuse of Authority, exonerated**). They also removed electronics and ID cards from

the location (**Allegations N, O, P and Q: Abuse of Authority, exonerated**). Officers froze § 87(2)(b) until December 23, 2019. On an unknown date, an officer allegedly broke the front teeth of § 87(2)(b)'s dog (**Allegation R: Abuse of Authority, officer unidentified**). At some point, officers damaged several objects in the house including, bedroom doors, bathroom doors, walls in the bathrooms, a dresser drawer, a vase, and a tap lamp (**Allegations: S, T, U, V, W: Abuse of Authority, officer unidentified**). An officer allegedly took a topless photo of § 87(2)(b) out of her dresser drawer and attached it to the refrigerator in the kitchen (**Allegation X: Discourtesy, officer unidentified**).

On December 23, 2019, the residents of § 87(2)(b) were informed that they could return home. On that day, an officer took a photo of § 87(2)(b) to ensure that he could be left responsible for the property (**Allegation Y: Abuse of Authority, exonerated**). On December 26, 2021, § 87(2)(b) attempted to file a complaint regarding the incident at the 120th Precinct stationhouse and was told that she could not do so by an unidentified officer (**Allegation Z: Abuse of Authority, officer unidentified**).

This investigation obtained body-worn camera footage (BWC) from Police Officer Gaetano Depaolo and Sergeant Dominick Tursi (**02 Board Review**). Other officers who were involved with the incident did not possess BWCs.

Sgt. Butthorn and Police Officer Elvisa Kolenovic have since retired from the NYPD.

Findings and Recommendations

Allegation (A) Force: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer used physical force against § 87(2)(b)

Allegation (B) Abuse of Authority: On December 21, 2019, Sergeant Eddie Wong entered § 87(2)(b) in Staten Island.

Allegation (C) Discourtesy: On December 21, 2019, at § 87(2)(b) in Staten Island, officers spoke discourteously to § 87(2)(b) and an individual.

Allegation (D) Discourtesy: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)

Allegation (E) Discourtesy: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)

Allegation (F) Force: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer struck § 87(2)(b) with a police shield.

Allegation (G) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Anthony Selvaggi drew his gun.

Allegation (H) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, an officer drew their gun.

Allegation (I) Abuse of Authority: On December 21, 2019, Sergeant John Butthorn entered § 87(2)(b) in Staten Island.

It is undisputed that on December 21, 2019, officers responded to the vicinity of § 87(2)(b) in Staten Island in regard to a shot spotter. Officers then confirmed the shot spotter and attributed it to § 87(2)(b) who was visiting § 87(2)(b) where his mother,

§ 87(2)(b) his brother § 87(2)(b) his sister § 87(2)(b) and his two pit bull dogs § 87(2)(b) live. At the time of the incident, § 87(2)(b)'s friend, § 87(2)(b) and her § 87(2)(b) old unidentified child was at the house as well. § 87(2)(b)'s friend, § 87(2)(b) was also at the house. ESU officers then gained entry into the house and handcuffed everyone except for § 87(2)(b) § 87(2)(b) and her child. Sgt. Buthorn, supervisor of the 120th Precinct Detective Squad team, then entered the house with Det. Campbell and Det. Edwards.

§ 87(2)(b) is a three-story private house owned by § 87(2)(b). The house has a front yard and backyard. There is a flight of stairs from the street that leads to the front door. Immediately beyond the front door is the living room which is on the second level of the house. § 87(2)(b)'s bedroom is on the third level of the house along with the room that § 87(2)(b) uses. § 87(2)(b)'s bedroom is on the second level of the house and § 87(2)(b)'s room is in the basement. At the time of the incident, § 87(2)(b) was asleep in § 87(2)(b)'s bedroom with § 87(2)(b). § 87(2)(b) was also in § 87(2)(b)'s bedroom. § 87(2)(b) was also on the second level of the house. § 87(2)(b) was in a room with § 87(2)(b) and her child on the third level. § 87(2)(b) was asleep in the living room on the couch and § 87(2)(b) was also in the living room.

§ 87(2)(b) testified that she saw that there were turret lights flashing in front of her home **(04 Board Review)**. § 87(2)(b) then looked out of her front living room window and saw police vehicles and officers approaching her home. She opened her door, stood in the doorway, and told officers, "The door is open." An officer then walked up the stairs leading to the front door, grabbed her by her neck and swung her away from his body and toward the stairs. This caused § 87(2)(b) to stumble down the stairs until she was caught by another officer. § 87(2)(b) was thus moved outside of the house. Approximately ten officers then entered the house and she heard them yelling, and what sounded like doors breaking. She also heard officers say, "Get the fuck down," while inside of the house. After the officers exited the house, officers in plain clothes went inside. The officers then removed § 87(2)(b) and her § 87(2)(b)-old child to the 120th Precinct stationhouse. § 87(2)(b) learned later from § 87(2)(b) that an officer woke her up by hitting her legs with his shield, which caused bruises to her leg.

§ 87(2)(b) and § 87(2)(b)'s testimonies were consistent with § 87(2)(b)'s regarding officers in plain clothes entering when ESU officers left **(05, 06, 07 Board Review)**. § 87(2)(b) testified that he was awakened by officers entering his home and telling him to stand up **(06 Board Review)**. The officers then handcuffed him and sat him in the living room. Officers told § 87(2)(b) to "shut the fuck up" and he heard officers tell § 87(2)(b) to "stop fucking talking."

§ 87(2)(b) testified that she was awakened by a 6' tall male officer with light skin hitting her in the back of her left calf with a police shield **(05 Board Review)**. The officer told § 87(2)(b) to go to the living room. As she walked to the living room, she saw § 87(2)(b) being handcuffed and that an officer who stood with him, had their firearm unholstered.

§ 87(2)(b) recalled that he was awakened to several police officers shining flashlights on

him **(07 Board Review)**. An officer told him to wake § 87(2)(b) up and he tried to do so but was unsuccessful. He heard an officer shout to her, “Hey kid wake up.” He was then guided to the dining room, handcuffed, and placed in the living room. The investigation was unsuccessful in obtaining a statement from § 87(2)(b) because she did not respond to any contact attempts **(08 Board Review)** and did not reach out to § 87(2)(b) for a statement as he remained incarcerated during the investigation. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Det. Selvaggi stated that he responded to the location to look for a perpetrator **(09 Board Review)**. When he arrived, he learned that there was a confirmed shot spotter and called his unidentified supervisor. His supervisor told him to wait for additional units to arrive. Det. Selvaggi was not able to identify the additional units and stated that they would have come from different boroughs since they were short manpower on that day. When Det. Selvaggi’s supervisor and additional units arrived, they noticed that § 87(2)(b)’s home had security cameras near the front door and lined up one behind the other to remove the camera. Det. Selvaggi was in the front of the line with a shield in one hand and his firearm in another. Det. Selvaggi had his firearm drawn because he was entering a location in search of an individual who was suspected to have a firearm. He knew that at least one other ESU officer had their firearm drawn. As Det. Selvaggi approached the door, § 87(2)(b) § 87(2)(b) opened it. Det. Selvaggi did not make any contact with her and moved past her to enter the house. He went into the house because he was called to the location to find an individual with a firearm. He did not see any other officer contact § 87(2)(b). He did not recall where he went nor what he did once he was inside the house. He did not hear officers use the discourteous language alleged and he did not do so. He did not see an officer hit § 87(2)(b) in the back of her leg with his shield and he did not remember doing this. He believed that he did not physically interact with any residents because he holds his shield and firearm the full time until he leaves a location.

Det. Campbell testified that he and his partner, Det. Edwards, received a phone call while they were at the 121st Precinct stationhouse to respond to the location to investigate a shot spotter incident **(10 Board Review)**. He explained that a shot spotter notification is generated over the radio when a sensor detects noise which sounds like gun shots at a particular location. Det. Campbell and Det. Edwards were the Night Watch Detectives for the borough of Staten Island. Police Officer Ismael Diaz of the 121st Precinct was at the location and informed Det. Campbell that they found a shell near § 87(2)(b) and that “§ 87(2)(b) a resident at § 87(2)(b) said that she saw § 87(2)(b) (identified by the investigation as § 87(2)(b) discharge a firearm. Det. Campbell, Det. Edwards, and PO Diaz then went to the interview § 87(2)(b), § 87(2)(f)

§ 87(2)(b)

At that point, the officers were investigating a confirmed shot spotter. Det. Campbell recalled that on his way to the location, he heard over the radio that Sgt. Wong called ESU. While he waited for ESU officers to arrive and enter the house, Det. Improta and their supervisor, Sgt. Butthorn, arrived at the location. He then updated Sgt. Butthorn on what happened. Det. Campbell was at the location when ESU officers arrived and entered the house, but he remained approximately 800 feet away from the house when they did so. He did not witness any of what was alleged. At some point, a patrol officer told them that the location was safe to

enter. Sgt. Butthorn, Det. Campbell, and Det. Edwards then went into the house to further investigate the shot spotter incident. Det. Campbell assisted in finding coats and shoes for the occupants of the house. As ordered by Sgt. Butthorn, he then escorted the occupants from the home to police vehicles to be transported to the 120th Precinct stationhouse.

Det. Improta testified that he was also a Night Watch Detective and responded to investigate the shot spotter from the 120th Precinct stationhouse (**11 Board Review**). Det. Campbell informed him that they spoke to § 87(2)(b), § 87(2)(f), who informed them that they saw § 87(2)(b) and another male discharge a firearm § 87(2)(f). Det. Improta recalled being 50-100 feet away from the house when ESU officers made their entry, and he also did not witness any of what was alleged. As civilians were brought out of the house, Det. Improta went near the front of the house and observed. Det. Improta never entered the house. He then went back to the 120th Precinct stationhouse.

According to PAA Damico of the 122 Detective Squad, Sgt. Butthorn has retired from the NYPD on January 31, 2021 (**03 Board Review**). Therefore, the investigator did not obtain a statement from him.

None of the other officers who were interviewed were at the location to witness these allegations (**12, 13, 14, 15, 16 Board Review**). A request for the ESU report for the entry and the pre and post execution plans were returned with negative results (**17, 18 Board Review**). Neither the ESU 5 nor ESU 2 Roll Call for the incident date revealed additional officers as being at the location nor do they show ESU supervisors present (**19, 20 Board Review**). A request for NYPD EVENTs for the location was returned with negative results (**21 Board Review**).

According to their MOS photos, Det. McNamara is a White male who is 5'8" tall and Det. Selvaggi is a White male who is 6' tall (**22 Board Review**).

Sgt. Tursi's BWC recording from IA 137, shows that at the beginning, he walks into § 87(2)(b) (**02 Board Review**). Det. Edwards, Det. Campbell and Sgt. Butthorn are inside of the house and asking the occupants of the house where their coats are. The occupants who are in the view, § 87(2)(b) and § 87(2)(b) are in handcuffs. Detectives then put coats and shoes on the residents. At 4:20 minutes, Sgt. Tursi escorts § 87(2)(b) to a marked police vehicle and transports her to the 120th Precinct stationhouse. None of the other BWC recordings show other alleged misconduct (**02 Board Review**).

People v. Rodriguez, 77 A.D. 3d 280 (2010) notes that officers are permitted to make a warrantless entry of a premise when the officers reasonably believe that there is an emergency which requires immediate assistance for the protection of life or property, and that there is a reasonable basis to associate the premises with the emergency at hand (**23 Board Review**). NYPD Patrol Guide Procedure 221.01 states that officers may draw their firearm based on an articulable belief that the potential for serious physical injury is present (**24 Board Review**).

Det. Campbell testified that he heard Sgt. Wong call for ESU over the radio while he was

on his way to the location and Tour 3 Resource Recap Log from the 120th Precinct for the incident date confirms that Sgt. Wong was the patrol supervisor who initially arrived to the location (**Board Review 27**). § 87(2)(g)

Det. Selvaggi testified that both he and another unidentified officer had their firearms drawn while at the location. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B, G, H and I be closed as *exonerated*.**

§ 87(2)(b) could not identify the officer who allegedly used force against her and none of the officers saw an officer use force against § 87(2)(b). Similarly, none of the residents could identify the officers who used profane language toward them and none of the officers heard or did not recall hearing officers use profane language. Finally, § 87(2)(b) could not identify the officer who allegedly used force against her besides providing a partial description. The investigation could not identify all the ESU officers who arrived at the location for the entry because Det. Selvaggi could not identify them, they arrived from different boroughs, ESU Roll Calls did not include names for additional officers and there was no ESU report prepared for the entry. According to Det. Selvaggi and Det. McNamara's MOS photographs, they are both males with light skin who are similar in height. Both detectives denied hitting § 87(2)(b) with the shield. § 87(2)(g)

It is therefore recommended that **Allegations A, C-F be closed as *officers unidentified*.**

Allegation (J) Abuse of Authority: On December 21, 2019, Detective Matthew Commander entered § 87(2)(b) in Staten Island.

Allegation (K) Abuse of Authority: On December 21, 2019, Detective Matthew Commander searched § 87(2)(b) in Staten Island.

Allegation (L) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender searched § 87(2)(b) s vehicle.
Allegation (M) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender searched § 87(2)(b) s vehicle.
Allegation (N) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b) s property.
Allegation (O) Abuse of Authority: December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b) s property.
Allegation (P) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b) s property.
Allegation (Q) Abuse of Authority: On December 21, 2019, at § 87(2)(b) in Staten Island, Detective Matthew Commender seized § 87(2)(b) s property.

It is undisputed that Det. Commender was assigned to the shot spotter incident in which § 87(2)(b) was the subject. When he heard about the incident, Det. Commender obtained three Richmond County search warrants, one for the house, § 87(2)(b), and two for § 87(2)(b) s and § 87(2)(b) s vehicles. § 87(2)(b) had a silver two-door 2004 Honda Civic with New York State license plate number § 87(2)(b) § 87(2)(b) had a black 2014 Fiat 500 with New York State license plate number § 87(2)(b). All warrants were signed by the Honorable Judge § 87(2)(b). It is undisputed that Det. Commender entered, searched, and seized evidence from the location.

§ 87(2)(b) testified that she returned home later in the day on December 21, 2019 (**04 Board Review**). When she arrived, an officer told her that she was not allowed to go into her house. When she asked to see a warrant, another officer showed her the three search warrants. When § 87(2)(b) returned to her home on December 24, 2021, she noticed the following items missing: her Apple Pro laptop from her bedroom, § 87(2)(b) s and § 87(2)(b) s laptops from their bedrooms, a PlayStation 4 from the living room, § 87(2)(b) s purple iPhone 11, § 87(2)(b) s red iPhone 11, § 87(2)(b) s iPhone, § 87(2)(b) s cell phone, § 87(2)(b) s cell phone, § 87(2)(b) s chain (jewelry) and state ID, and § 87(2)(b) s school ID and child support card. She also noted that § 87(2)(b) and § 87(2)(b) were told that they could not have their car keys. § 87(2)(b) eventually received property vouchers for these items (**25 Board Review**).

§ 87(2)(b) and § 87(2)(b) had a similar account of events as § 87(2)(b) (**05, 06, 07 Board Review**). § 87(2)(b) added that when he returned, his clothes in his bedroom were on the floor and that everything had been removed from the cabinets of his bathroom sink (**06 Board Review**). In the kitchen, cabinets were opened and drawers had been pulled out and placed on the floor. § 87(2)(b) added that § 87(2)(b) s home was a mess and that their closets were emptied (**07 Board Review**). He knew that his car had been searched because there were items scattered all over his car, including a bag of band-aids which were spread out all over his car.

Det. Commender testified that he was not working at the time that the shot spotter was activated for this incident (**12 Board Review**). He further noted that he investigated all shot spotter incidents in the 120th Precinct and probably received a phone call informing him that he would need to get a warrant for the location. With the warrant, Det. Commender

hoped that he would recover evidence from the shot spotter incident and for a homicide case that he was investigating, which involved § 87(2)(b). At some point, Det. Commender learned that officers found shells in the vicinity of § 87(2)(b). On December 21, 2019, at approximately 12:00 p.m., he obtained a search warrant for the house which authorized officers to remove anything from the house which was associated with a firearm and any electronics which may have information related to the incidents. He also obtained two search warrants for the cars that were parked in front of the house because the firearm may have been in them. Det. Commender arrived at the location with his warrants at approximately 3:00 p.m. and saw that there were no residents inside. He noted that Sgt. Dalbero arrived with him. Det. Commender searched every room in the house where a bullet, gun or magazine could be found. Officers from Staten Island Gang Squad and Staten Island Homicide helped with the search. Det. Commender also searched the vehicles included on the warrants. He did not recover any firearms or ammunition but found counterfeit money in § 87(2)(b)'s room. Det. Commender seized cell phones, a game console, a computer and possibly jewelry.

Sgt. Dalbero testified that he was informed about the shot spotter when he arrived to work on the day of this incident (**13 Board Review**). He then contacted Det. Commender who said that he was in the process of obtaining warrants for the location. At some point, Sgt. Dalbero and his partner, Det. Mendez, went to the front of the house to ensure that patrol officers were guarding the location. He then left until Det. Commender called him and told him that he obtained the search warrant. He met Det. Commender at the location at approximately 3:10 p.m. There were also officers from the Staten Island Gang Squad there. Sgt. Dalbero debriefed all the officers and proceeded to enter and search the house with Det. Commender and officers from the Staten Island Gang Squad. He did not know what property was taken from the home and he did not know who took the property.

Richmond County search warrant # § 87(2)(b), issued by the Honorable Judge § 87(2)(b) on § 87(2)(b), notes that Det. Commender was authorized to search and seize evidence at § 87(2)(b) in Staten Island pertaining to an incident of homicide against § 87(2)(b) (**26 Board Review**). The same judge issued two additional search warrants for a black 2014 Fiat 500 bearing NYS license plate § 87(2)(b) VIN § 87(2)(b) and a silver Honda Civic bearing NYS license plate § 87(2)(b) VIN § 87(2)(b) (**26 Board Review**). These warrants noted that Det. Commender was authorized to search and seize the vehicles between the hours of 9:00 a.m. and 6:00 p.m. within ten days of December 21, 2019.

The following property vouchers were in association with § 87(2)(b)'s arrest. Property Clerk invoice number § 87(2)(b) notes that Det. Commender vouched one diamond necklace (**27 Board Review**). Invoice number § 87(2)(b) notes that he vouched a knife, three photographs and a digital scale. Invoice number § 87(2)(b) notes that he vouched § 87(2)(b)'s debit card, benefit card, New York State ID, high school ID and other miscellaneous documents. Invoice number § 87(2)(b) notes that Det. Commender vouched § 87(2)(b)'s student ID. Invoice § 87(2)(b) notes that Detective Genee Parker of the Detective Borough of Staten Island Operations vouched § 87(2)(b)'s credit card (**25 Board Review**).

New York State (NYS) Criminal Procedure Law (CPL) §690.50 explains that police officers are permitted to enter and search a location with a valid judge-issued warrant (**28 Board Review**). A search warrant must be executed within ten days after the date of issuance and on any day of the week between the hours of 6:00 a.m. and 9:00 p.m., NYS CPL §690.30 (**29 Board Review**).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations J-Q** be closed as *exonerated*.

Allegation (R) Abuse of Authority: On an unknown date, at an unknown location, officers damaged § 87(2)(b)'s property.

It is undisputed that § 87(2)(b) had two pit-bull dogs at her home during the incident and that ESU officers were called twice to noose and contain them. Detective Joseph Breder, Police Officer Lukasz Kusibab, and Detective Min Kim arrived on December 21, 2019 and Detective Ralph Tropiano, and Detective Thomas Citera of ESU arrived on December 22, 2019.

§ 87(2)(b) testified that an officer called her the night of December 21, 2019, while she was at a relatives' home, and told her that if she could not get her dogs at that time, they would be taken to the American Society for the Prevention of Cruelty to Animals (ASPCA) (**04 Board Review**). § 87(2)(b) was not able to get the dogs and allowed officers to take them to ASPCA. When she called the facility the next morning, they told her that one of her dogs, § 87(2)(b) had cracked teeth and that officers said it was because he bit the catcher's pole. An ASPCA employee noted that § 87(2)(b) injuries were not consistent with a pole bite. As mentioned earlier, when § 87(2)(b) returned home, she saw § 87(2)(b) blood on walls and floors in an upstairs bathroom. § 87(2)(b) was consistent with § 87(2)(b)'s testimony and further noted that staff at the ASPCA had to repair § 87(2)(b) teeth (**06 Board Review**).

Det. Breder testified that he, Det. Kim, and PO Kusibab responded to the location for an animal condition on December 21, 2019 (**14 Board Review**). When he arrived, he learned that he needed to remove two pit-bull dogs from the house for safety purposes and to prevent an injury or attack. As he entered the location, the dogs were freely roaming in the house and ran up the stairs. He recalled that § 87(2)(b) was aggressive, growled, showed his teeth, and barked at the officers. § 87(2)(b) did not want to get near the officers and ran away from them. Det. Breder allowed PO Kusibab, who was new to ESU, to contain

§ 87(2)(b) because he wanted him to get the experience. Det. Breder remained with PO Kusibab as he did so. They then used a noose, which was a long pole with an adjustable cable at the end, to put around the dogs' necks and guided them into a kennel (cage). § 87(2)(b) did not sustain any injuries in the process of getting him into the kennel. Det. Breder, Det. Kim, and PO Kusibab then gave the kennels to patrol officers outside of the house.

Det. Tropiano testified that he and Det. Citera responded to an animal condition at the location on December 22, 2019 (**15 Board Review**). He could not recall anything about the incident. He did not recall whether he or another officer broke § 87(2)(b) teeth. Det. Citera's testimony was consistent with Det. Tropiano's but he knew that he did not and did not see any officer break § 87(2)(b) teeth (**16 Board Review**). He added that it was possible for a dog's teeth to crack after biting a catcher's pole. All other officers interviewed testified that they did not interact with the dogs or that they did not recall dogs at the location (**09, 10, 11, 12, 13 Board Review**).

§ 87(2)(a) N.Y. Educ. Law § 6714

An ESU report completed by Det. Breder notes that on December 21, 2019, at 2:51 p.m. ESU officers used a noose to control and contain two pit bulls (**17 Board Review**). An ESU report completed by Det. Tropiano, notes that on December 22, 2019, at 12:22 a.m., ESU officers noosed and kenneled two canines.

When § 87(2)(b) left § 87(2)(b) prior to officers seizing her home, his teeth were not broken. At some point, while officers were searching her home and handling § 87(2)(b) his teeth broke. There were at least five officers that responded to the location on both days to handle § 87(2)(b) and two of them testified to not knowing what happened to him. § 87(2)(g)

It is therefore recommended that **Allegation R** be closed as *officers unidentified*.

Allegation (S) Abuse of Authority: On an unknown date between December 21 and December 23, 2019, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.

Allegation (T) Abuse of Authority: On an unknown date between December 21 and December 23, 2019, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.

Allegation (U) Abuse of Authority: On an unknown date between December 21 and December 23, 2019, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.

Allegation (V) Abuse of Authority: On an unknown date between December 21 and December 23, 2019, at § 87(2)(b) in Staten Island, officers damaged § 87(2)(b)'s property.

Allegation (W) Discourtesy: On an unknown date between December 21 and December 23, 2019, at § 87(2)(b) in Staten Island, an officer acted discourteously toward § 87(2)(b).

It is undisputed that there was some property damage at the location and that there was a topless photo of § 87(2)(b) attached to her refrigerator. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) stated that § 87(2)(b) was the first to return to their home and that he reported the following damage to her: holes in a bathroom wall, a shattered doorframe to § 87(2)(b)'s bedroom, a bedroom door broken in half width-wise, planks of § 87(2)(b)'s bed broken, a broken vase in § 87(2)(b)'s bedroom, broken drawers from § 87(2)(b)'s bedroom, cracked storage bins, and holes in bathroom doors (**04 Board Review**). He also told her that a nude photo of her had been displayed on the refrigerator. § 87(2)(b) further explained that prior to the incident, her nude photo had been in one of her bedroom's dresser drawers. § 87(2)(b) and § 87(2)(b) testified to seeing most if not all of this damage (**05, 06, 07 Board Review**). § 87(2)(b) added that in the basement: the ceiling vent had been ripped out and a hole had been ripped open around the switch-off valve (**06 Board Review**). § 87(2)(b) added that there were triangular holes in the bathroom doors (**07 Board Review**).

As mentioned earlier, Det. Selvaggi was called to the location to assist with a perpetrator search (**09 Board Review**). He was the first ESU officer to enter the house. He denied causing any of the alleged property damage and did not see any other officers do so. Det. Selvaggi did not see any officers attach § 87(2)(b)'s photo to the fridge and he did not do this. He did not see § 87(2)(b)'s photo while he was at the location. Det. Impronta was never in a position to see the inside of the house (**11 Board Review**). Det. Campbell, Det. Breder, Det. Commender, and Sgt. Dalbero all testified that they did not see any officers cause the alleged damage and they denied damaging the property themselves (**10, 12, 13, 14 Board Review**). They also denied putting § 87(2)(b)'s photo on the fridge or seeing another officer do so. Det. Breder added that the house was messy and in disarray when he was there (**14 Board Review**). Sgt. Dalbero and Det. Breder did not recall whether they saw the damage while at the house (**13, 14 Board Review**). Det. Citra and Det. Tropiano did not recall whether they caused or saw other officers cause the damage alleged (**15, 16 Board Review**). Det. Citra did not know how § 87(2)(b)'s photo got on the refrigerator and he did not recall seeing it there while he was there (**15 Board Review**). Det. Tropiano did not see an officer attach a nude photograph of § 87(2)(b) to the refrigerator and he did not do this (**16 Board Review**).

None of the officers' BWC recordings captured the alleged misconduct (**02 Board**

Review). Photos provided § 87(2)(b) show two bathroom doors with triangular shaped holes in the top middle portion of the doors (**246 Board Review**). The photos also show a bedroom door which has a crack stemming from the doorknob to the middle of the door and a photo of § 87(2)(b) exposed breasts with large hearts covering her nipples, attached to the side of a refrigerator.

All interviewed officers either did not recall whether they committed the alleged actions or denied doing so. § 87(2)(g)

It is therefore recommended that **Allegations S-W** be closed as *officers unidentified*.

Allegation (X) Abuse of Authority: On December 23, 2019, outside of § 87(2)(b) in Staten Island, Police Officer Elvisa Kolenovic took a photograph of § 87(2)(b)

It is undisputed that § 87(2)(b) and his family were not allowed to enter their home between December 21 and December 23, 2019. § 87(2)(b) was the first resident to return home once they were allowed to do so.

§ 87(2)(b) testified that when he arrived back home, an officer took a photo of him to confirm his identity with the Detective that was in charge, since his identification was either in the house or at the stationhouse (**06 Board Review**). He described this officer as a 20- 30-year-old White female with blonde hair and an average build who was 5'7" tall and in uniform.

Tour 3 Roll Call from the 120th Precinct for the incident date notes that PO Kolvenic was the only officer assigned to § 87(2)(b) (**30 Board Review**). According to PO Kolvenic's MOS photo, she is a 5'6" tall, § 87(2)(b)-old White slim female with blonde hair (**31 Board Review**). § 87(2)(g)

As of December 2, 2021, according to SPAA Santiago of the 120th Precinct, PO Kolvenic was on § 87(2)(b) leave until January 15, 2022. § 87(2)(b) (**32 Board Review**). The investigation could not obtain a statement from PO Kolvenic.

Members of service are authorized to use their department phones to photograph official enforcement functions, NYPD Operations Order 20 (**33 Board Review**).

§ 87(2)(g)

it is recommended that **Allegation X** be closed as *exonerated*.

Allegation (Y) Abuse of Authority: On December 26, 2019, at the 120th Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding an officer.

§ 87(2)(b) testified that she went to the 120th Precinct stationhouse to retrieve some items that were taken from her house during the house search, inquire about missing earrings (which she later found) and file a complaint about the nude photo and missing earrings (**04 Board Review**). At an unknown location at the stationhouse, an officer told her that she could not take her complaint there and provided her the number for the Internal Affairs Bureau. § 87(2)(b) described this officer as a 20-year-old White or White Hispanic female with an average build and blond hair in uniform.

Tour 2 Roll Call for 120th Precinct from the incident date revealed that three officers matched the description of the subject officer as provided by § 87(2)(b) (**30 Board Review**). Police Officer Leah Ortiz, assigned as a domestic violence officer is a Hispanic female who is § 87(2)(b) old with brown hair, Police Officer Debra Matteo, also assigned to domestic violence officer, is a White female who is § 87(2)(b) old with dark hair and highlights (MOS photo says blonde hair), and Police Officer Amanda Bruno, assigned to Jersey Street Auto, is a White female who is § 87(2)(b) old with blonde hair. They were all assigned to field assignments. The desk sergeant at the time of the incident was Sergeant Arturo Gomez who was a male (**30, 31, 34 Board Review**). The Roll Call did not list a telephone switchboard operator. There were no other officers with a stationhouse assignment who matched the description provided by § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegations Y** be closed as *officer unidentified*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one other CCRB complaint and has been named a victim in two allegations (**35 Board Review**).
 - § 87(2)(b)
- § 87(2)(b) has been a party to two other CCRB complaints and has been named a victim in five allegations (**35 Board Review**).

- § 87(2)(b)
-
- § 87(2)(b) has been a party to one other CCRB complaint and has been named a victim in four allegations (**35 Board Review**).
 - § 87(2)(b)
- § 87(2)(b) has been a party to one other CCRB complaint and has been named a victim in two allegations (**35 Review**).
 - § 87(2)(b)
- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been parties (**35 Board Review**).
- Sgt. Wong has been a member of service for 16 years and has been a subject in four complaints and six allegations, none of which were substantiated.
 - Cases 201504376 involved entry/search of premises allegation pled against Sgt. Wong that was closed as exonerated.
- Det. Selvaggi has been a member of service for 23 years and has been a subject in two other CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Buthorn is no longer a member of service, and the investigation could not determine his tenure. He has been a subject in six cases and seven allegations, one of which was substantiated.
 - Case 200406985 involved one allegation of refusal to provide name/shield number against Sgt. Buthorn. The Board recommended formalized training and the NYPD imposed the recommended penalty. § 87(2)(g)
- Det. Commender has been a member of service for 14 years and has been a subject in seven allegations, none of which were substantiated. § 87(2)(g)
- PO Kolvenic is no longer a member of service, and the investigation could not determine her tenure. She has been a subject in two cases and three allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On an unknown date, § 87(2)(b)'s attorney § 87(2)(b) filed four Notices of Claim with the City of New York on behalf of § 87(2)(b) her

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____